

Ethical Reasoning and Decision Making Framework - MuseScore

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Educational technology product: MuseScore

Website: <https://musescore.org/>

Product document: MuseScore Terms of Service & Privacy Policy

Link:

<https://musescore.com/legal/privacy?srsltid=AfmBOorQQH2KA1nKI7UDvmHggQhn97SW-O6vnmzNsmiOi9hdpF7AJUbP>

1. Ethical principles

I will be evaluating MuseScore's Privacy Policy. I will do this by using UNESCO's ten core principles for ethical AI (UNESCO, 2021) which are: human rights and dignity, inclusion and equity, non-discrimination and fairness, sustainability, safety and security, transparency and explainability, accountability, privacy, freedom of expression, and human oversight. I have decided to use this framework as I believe it can effectively let me balance both student wellbeing and ethical pedagogy in my decision-making.

I want to ensure *human rights and dignity* is at the forefront of my analysis, because it is an effective way to frame the importance of respecting that students' personal data and creative work stays safe, and to make sure online interactions are respected and protected. This is particularly relevant given that the MuseScore policy cites the collection of personal data, names, email addresses, device IDs, and any uploaded scores (MuseScore, 2024).

Like most digital products, MuseScore requires internet access for cloud services and I will need to ensure there is *inclusion and equity* in place so students from low SES or rural backgrounds will not be disadvantaged through the introduction of this software. In a similar way, the principle of *non-discrimination and fairness* can help me ensure the platform does not unintentionally privilege students who have better connectivity or more advanced equipment.

The principle of *transparency and explainability* will be important as I will need to ensure that students and educators understand how MuseScore collects and uses data, how any decisions about shared content are made by the company, and how privacy rights should be managed for users. This will also relate to the principle of *accountability*, which can ensure that both my role as an educator and MuseScore's role as developers share responsibility for ethical outcomes.

The privacy principle is critical. MuseScore's Privacy Policy outlines it retains data only as long as necessary and uses encryption and secure storage measures, but also that there is some data that may be transferred under contractual safeguards (MuseScore, 2024). I must make sure this aligns with students' rights under the broader umbrella of UNESCO's human rights principle.

The principle of *safety and security* will help me consider digital risks like cyberbullying that might take place in online forums, or issues of unauthorised access to student data. The principle of *sustainability* will let me understand the long-term platform reliability of MuseScore. Finally, the principles of freedom of expression and human oversight allow students to creatively explore music while ensuring content moderation to prevent harm.

2. Get the facts

MuseScore is an open-source music notation software that allows students to compose, arrange, and share music online. In its Terms of Service (MuseScore, 2023) and Privacy Policy (MuseScore 2023; MuseScore, 2024) it outlines details relating to account creation, the use of data, management of intellectual property, and community interaction expectations. The areas I have found most relevant for my evaluation are:

- **Data collection and privacy**
MuseScore collects names, email addresses, device IDs, IP addresses, browsing data, profile activity, and additional opt-in personal data (MuseScore, 2024).
- **Intellectual property**
The policy notes that students can upload and share musical scores, but legal responsibility for copyright compliance lies with the user (MuseScore, 2023). This raises ethical questions about *freedom of expression* and *human oversight*, as students may inadvertently infringe copyright laws
- **Community interaction**
MuseScore fosters collaboration through forums and sharing content. This is great for education, but can present potential risks to safety and dignity if content is not going to be appropriately moderated (MuseScore, 2024).

In order to make effective ethical judgements on the adoption of MuseScore, I will need further information about the following:

- **Data storage and security**
The Privacy Policy indicates servers are in the European Economic Area (EEA) with third-party data transfer being safeguarded by standard contractual clauses. However I would want some further details about encryption methods and monitoring practices.
- **Age safeguards**
The Terms of Service notes that MuseScore is intended for users aged 14 and over, with verifiable parental consent (MuseScore, 2024). I need clarification about how compliance for this works, particularly in the context of relevant Australian child safety laws. Given that MuseScore requires its users to be at least 14 years old, it will be important to consider the rights of children and young people in digital environments (Livingstone & Third, 2017) to ensure online safety and compliance with ethical standards.
- **Commercialisation of data**
The Privacy Policy mentions data is collected for limited marketing use and optional targeted advertising (MuseScore, 2024). I need to understand if student data can be monetised and how targeted the analytics is.

3. Understanding impact

Using MuseScore in classrooms will have potential ethical benefits and risks. They are as follows:

Positive

- There will be more equitable access available for students. Students who are not able to afford commercial software will be able to use MuseScore to compose and share music, aligning well with UNESCO's *inclusion and equity* principle (Dillon, 2007).
- Online forums and score-sharing will support collaborative learning which will in turn promote freedom of expression and also sociocultural learning paradigms (Vygotsky, 1978).
- Students at varying skill levels will have access to compose, perform, and analyse music which can promote differentiated learning and promote equity. MuseScore is ideal for supporting this type of learning and collaborative music-making, and can help inform debates around effective use of technology in education (Selwyn, 2016).

Negative

- It is possible that personal data may be stored outside the EEA (MuseScore, 2024) raising a privacy risk and ethical concerns under *human rights* and *privacy* principles.
- Online dependent functionality may disadvantage rural or low-SES students which raises equity concerns (Roberts & Green, 2013).
- Students may create unintentionally legal risks for themselves by sharing copyrighted music which highlights *human oversight* by the teacher and school.
- The online communities (thought moderated) (MuseScore, 2024) risks exposing students to cyberbullying or inappropriate content, raising safety concerns related to the *safety and dignity* principles.

Key stakeholders involved in the implementation of MuseScore will include students who will be directly affected in terms of learning, privacy, and online safety; teachers who will need to ensure ethical and legal compliance while supporting learning; and parents who will be concerned about data privacy and safety in online environments. The school itself will also play a role in finding the balance between its legal obligations when adopting ICT, and equity, and pedagogy. MuseScore developers (comprised of an open source community) will also be important to consider in terms of the platform's design and ethical outcomes.

4. Taking action

In order to implement MuseScore, I would undertake the following:

- **Consultation and support**

I would engage teachers, school ICT coordinators, parents, and students in order to discuss how the software will be used and explain both benefits and risks. Students will need to receive clear guidelines on safe online behaviour using MuseScore, copyright compliance, and privacy, that is aligned to MuseScore's Privacy Policy

(MuseScore, 2024). Parents will need to be given clear information about data handling and safeguards for the use of this software.

- **Effective communication of ethical concerns**

I would communicate to the school community that my recommendation has been guided by documented ethical principles (in this case, using UNESCO principles). I would communicate how MuseScore's Privacy Policy and Terms of Service can demonstrate the protection of student data, provide supports for parental control, and provide mechanisms for rights regarding data access and deletion (MuseScore, 2024).

- **Clear policies and procedures supporting implementation**

- Students will have to use school-managed accounts to minimise any personal data exposure.
- Any access to the wider online score-sharing community will be restricted or monitored for those under 14 years of age.
- Teachers will receive professional development training on copyright, privacy, and safe digital practice in relation to this type of content
- Offline functionality will be encouraged to reduce inequity for students with limited internet access, supporting inclusion and equity (MuseScore software can be used completely offline).

By undertaking these actions and applying these measures, I believe I will be able to integrate MuseScore in a way that maximises educational opportunities while at the same time upholding ethical responsibilities to all stakeholders. It will be critical to ensure that, if the implementation goes ahead it, it will be in the context of an ongoing process of ethical reflection, monitoring, and adaptation, fully aligned with UNESCO principles.

References

Dillon, S. (2007). *Digital music in the classroom: Access and equity*. Routledge.

Floridi, L., & Cowls, J. (2019). A unified framework of five principles for AI in education. *AI & Society*, 34(4), 733–744. <https://doi.org/10.1007/s00146-019-00830-0>

Livingstone, S., & Third, A. (2017). Children and young people's rights in the digital age: An emerging agenda. *New Media & Society*, 19(5), 657–670. <https://doi.org/10.1177/1461444816686318>

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Selwyn, N. (2016). *Education and technology: Key issues and debates* (2nd ed.). Bloomsbury Academic.

UNESCO. (2021). *Recommendation on the ethics of artificial intelligence*. <https://www.unesco.org/en/artificial-intelligence/recommendation-ethics>

AI Declaration

I used ChatGPT to do minor checks on grammar and also check that I had covered all the principles listed by UNESCO. It broadly agreed and offered a couple of suggestions which I did not use. I also used it to check that my references were in APA7 style.